SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA

Tentative Ruling

2026CUPT065538: IN THE MATTER OF: IDRIS SAYED
08/18/2026 in Department 40
Motion to Compel a Single Joint Arbitration Proceeding

Below is the Court's tentative decision with respect to the matter on calendar. The Court may adopt, modify, or change the tentative ruling after hearing. The tentative ruling has no legal effect unless and until adopted by the Court.

The Court intends to GRANT Petitioner's Motion to Compel a Single Joint Arbitration Proceeding. Mobilitas Insurance Company does not oppose a single joint arbitration. While United States Fire Insurance Company highlights certain differences in the legal and factual questions presented by both arbitrations, the Court finds the dispute arose from one occurrence (alleged traffic accident involving alleged Lyft driver) and having one arbitration proceeding will foreclose the possibility of inconsistent rulings were the arbitrations to be conducted separately. (Code Civ. Proc., §1281.3.) Because the parties are not in agreement as to the arbitrator, the Court intends to follow section 1281.6 of the Code of Civil Procedure for purposes of appointing the arbitrator. As to the timing of the arbitration, the Court will discuss this issue further with the parties at the hearing.

The Court intends to GRANT Petitioner's request for judicial notice of minute orders from Superior Court of California, County of Los Angeles cases. (Ev. Code §452, subdiv. (d).)

I. Background

On April 28, 2026, Petitioner Idris Sayed ("Petitioner") filed a Petition to Open Unlimited Civil Court File to Establish Jurisdiction Over Uninsured/Underinsured Motorist Arbitration against respondents Mobilitas Insurance Company ("Mobilitas") and United States Fire Insurance Company (administered by Blue Star Claims, LLC) ("USFIC") (Mobilitas and USFIC are referred to herein individually as a "Respondent" and collectively as "Respondents"). Petitioner asserts Respondents are insurance carriers, Petitioner procured an uninsured / underinsured motorist insurance policy through Mobilitas and an occupational accident benefits for medical services and supplies policy through USFIC; both policies contain provisions requiring coverage disputes to be resolved through binding arbitration; Petitioner served each Respondent with a Demand for Arbitration seeking enforcement of contractual benefits owed; and Respondents have failed and refused to cooperate in arbitration proceedings making court intervention necessary to enforce the arbitration agreements.

On May 13, 2026, Petitioner filed the instant Motion to Compel a Single Joint Arbitration Proceeding. Specifically, Petitioner moves the court for an order (1) consolidating the arbitration proceedings involving Respondents; (2) compelling Respondents to participate in one single joint arbitration proceeding addressing liability and damages arising from the May 2, 2024, motor vehicle accident; (3) appointing one of three experienced neutrals: Hon. Robert J. Moss, David Karen, Esq., or R.A. Carrington, Esq. and requiring the arbitration be conducted within 90 days of the Court's order; and (4) granting such other and further relief as the Court deems just and proper. The Motion is made pursuant to Code of Civil Procedure sections 1281.2 and 1281.3.

Mobilitas opposes the motion in part. Mobilitas does not oppose a single joint arbitration between Petitioner, Mobilitas, and USFIC. Mobilitas contends, however, that the Court should not appoint an arbitrator from Petitioner's proposed list but instead should appoint Sean Burke as Mobilitas and Petitioner previously agreed. Moreover, Mobilitas objects to requiring arbitration within 90 days, arguing that it should be set at a mutually agreement date and time.

USFIC opposes the motion in its entirety, arguing that Petitioner has failed to show common issues, the two policies address fundamentally different categories of loss and serve different compensatory purposes, the arbitration proceedings will require resolution of different legal and factual questions, and consolidation would prejudice Respondents and complicate rather than streamline the proceedings.

II. Discussion

Petitioner brings the instant Petition pursuant to Code Civil Procedure sections 1281.2 and 1281.3. Each statute is analyzed below. As a preliminary matter, however, the Court will address Petitioner's Request for Judicial Notice and USFIC's corresponding opposition.

A. Requests for Judicial Notice

Petitioner requests judicial notice under Evidence Code sections 452, subdivision (d), and 453, of various minute orders from other cases which granted consolidation of arbitration proceedings. (See Petitioner's Request for Judicial Notice ["RJN"].) USFIC objects to judicial notice of these rulings, arguing that the Court cannot accept the factual statements contained therein. (See USFIC Opposition to Request for Judicial Notice ["USFIC Opp. to RJN"].)

As USFIC acknowledges, a minute order from another court proceeding is a court record that falls within Evidence Code section 452, subdivision (d). (USFIC Opp. to RJN, 3:14-15.) Therefore, the Court takes judicial notice of the minute orders.

USFIC is correct, however, that the Court cannot take judicial notice of the truth of matters set forth in the minute orders.

B. Code of Civil Procedure section 1281.2

Code of Civil Procedure section 1281.2 provides "On petition of a party to an arbitration agreement alleging the existence of a written agreement to arbitrate a controversy and that a party thereto refuses to arbitrate such controversy, the court shall order the petitioner and the respondent to arbitrate the controversy if it determines that an agreement to arbitrate the controversy exists, unless it determines that: (a) The right to compel arbitration has been waived by the petitioner; or (b) Grounds exist for the revocation of the agreement."

Mobilitas does not oppose a joint arbitration with Petitioner and USFIC, thereby conceding the point as to whether there is an agreement to arbitrate with Petitioner. (Mobilitas Opposition ["Mobilitas Opp."] 2:15-17; 2:25-2:26.) Accordingly, it is undisputed that Petitioner and Mobilitas have an arbitration agreement.

USFIC does not dispute that it has an arbitration agreement with Petitioner. Instead, USFIC's Opposition states, in relevant part, "The USFIC OAI policy contains its own separate and independent binding arbitration clause and is limited to reimbursing reasonable charges for medical services and supplies that have been ordered by a physician for the diagnosis or treatment of an occupational accident and deemed medically necessary." (USFIC Opposition ["USFIC Opp."] 2:20-24.) Consequently, it is also undisputed that Petitioner and USFIC have an arbitration agreement.

None of the parties allege that Petitioner has waived the right to compel arbitration or that grounds exist for revocation of the applicable arbitration agreement. Therefore, the Court orders the Petitioner and Mobilitas to arbitrate their dispute, and further orders Petitioner and USFIC to arbitrate their dispute, pursuant to Code of Civil Procedure section 1281.2.

C. Code of Civil Procedure section 1281.3

The issue at the crux of the parties' dispute with respect to the instant Motion is whether the Court elects to order the parties to consolidate the arbitration proceedings, pursuant to Code of Civil Procedure section 1281.3.

Code of Civil Procedure section 1281.3 states:

> A party to an arbitration agreement may petition the court to consolidate separate arbitration proceedings, and the court may order consolidation of separate arbitration proceedings when:
>
> (1) Separate arbitration agreements or proceedings exist between the same parties; or one party is a party to a separate arbitration agreement or proceeding with a third party; and
> (2) The disputes arise from the same transactions or series of related transactions; and
> (3) There is common issue or issues of law or fact creating the possibility of conflicting rulings by more than one arbitrator or panel of arbitrators.
>
> If all of the applicable arbitration agreements name the same arbitrator, arbitration panel, or arbitration tribunal, the court, if it orders consolidation, shall order all matters to be heard before the arbitrator, panel, or tribunal agreed to by the parties. If the applicable arbitration agreements name separate arbitrators, panels, or tribunals, the court, if it orders consolidation, shall, in the absence of an agreed

> method of selection by all parties to the consolidated arbitration, appoint an arbitrator in accord with the procedures set forth in Section 1281.6.
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> In the event that the arbitration agreements in consolidated proceedings contain inconsistent provisions, the court shall resolve such conflicts and determine the rights and duties of the various parties to achieve substantial justice under all the circumstances.
>
> The court may exercise its discretion under this section to deny consolidation of separate arbitration proceedings or to consolidate separate arbitration proceedings only as to certain issues, leaving other issues to be resolved in separate proceedings.
>
> This section shall not be applicable to an agreement to arbitrate disputes as to the professional negligence of a health care provider made pursuant to Section 1295.

(Code Civ. Proc. § 1281.3.)

1. Separate arbitration agreements exist

As stated above in section II(A) of this ruling, it is undisputed that an arbitration agreement exists between Petitioner and Mobilitas and that a separate arbitration agreement exists between Petitioner and USFIC. Therefore, Code of Civil Procedure section 1281.3, subdivision (1), is satisfied.

2. Dispute arises out of same transaction

The parties agree that the dispute arises out of the same May 2, 2024 vehicular collision. (Memo. 3:17-26; Mobilitas Opp. 2:26-3:2; USFIC Opp. 4:9-10.) Consequently, Code of Civil Procedure section 1281.3, subdivision (2), is met.

3. Common Issue or Issues of Law or Fact Creating the Possibility of Conflicting Rulings

As noted above, Mobilitas does not oppose a joint arbitration with Petitioner and USFIC. (Mobilitas Opp. 2:15-17; 2:25-2:26.) In fact, Mobilitas contends that a consolidated arbitration is appropriate because the action arises out of the same May 2, 2024 vehicular collision and that "Mobilitas is entitled to reduce Petitioner's recovery for an amount paid under any worker's compensation law, including occupational accident insurance benefits." (Mobilitas Opp. 2:26-28; 3:15-17.)

USFIC does, however, object to a consolidated arbitration. In USFIC's view, a common accident is insufficient. (USFIC Opp. 3:20-24.) According to USFIC, Petitioner has not established a showing of common issues of law or fact that create the possibility of inconsistent rulings because "[t]he Mobilitas arbitrator will decide two tort questions and only two: the uninsured motorist's liability and the amount of compensatory damages the insured is legally entitled to recover" whereas "[t]he USFIC arbitrator will decide questions found nowhere in the Mobilitas proceeding, whether the incident qualifies as a covered 'occupational accident,' whether particular charges were physician-ordered and 'medically necessary,' whether those charges are 'reasonable' within the policy's meaning, and whether they fall within the OAI policy's 104-week benefit period." (USFIC Opp. 4:17-23.) USFIC further argues that "[b]ecause the two arbitrators would apply different legal standards to different questions, a ruling in one proceeding cannot contradict a ruling in the other. A finding that a charge is not 'medically necessary' under the OAI policy neither conflicts with nor bears upon an award of tort damages under section 11580.2; and a determination of the tortfeasor's fault neither conflicts with nor bears upon whether the OAI policy covers a given medical expense." (USFIC Opp. 4:23-28.)

In its reply, Petitioner avers as follows.

> 1. Although the policies provide different forms of coverage, the relevant factual inquiries substantially overlap. Both proceedings will require evidence concerning:
> • The occurrence and circumstances of the May 2, 2024 collision;
> • The nature and extent of Petitioner's injuries;
> • Whether Petitioner's claimed injuries were caused by the collision;
> • The medical services and supplies Petitioner received;
> • Whether the treatment was reasonable, necessary, and related to the collision; and
> • The amount of Petitioner's accident-related damages or recoverable benefits.
>
> USFIC's reliance on the differences between the two policy forms does not eliminate these common factual issues. Section 1281.3 does not require that the separate arbitration proceedings involve identical causes of action, identical coverage provisions, or identical legal standards. It requires common issues of law or fact arising from the same transaction or series of related transactions. That requirement is met here.

(Reply to USFIC Opp. 6:17-28.)

Notably, USFIC does not offer any case law where a court decided <u>not</u> to combine arbitrations because of some distinction between the policy coverages. Indeed, there are several cases in which consolidation was ordered. For example, in *Gordon v. G.R.O.U.P., Inc*. (1996) 49 Cal.App.4th 998, 1006, the court combined the arbitration of uninsured motorist with one related to third-party liability. This case provides persuasive authority in favor of consolidation.

As a separate matter, USFIC expends a substantial portion of its opposition addressing the inapplicability of Insurance Code section 11580.2 to the USFIC policy. While it is true that Insurance Code section 11580.2 governs the Mobilitas policy and not the USFIC policy, that issue is irrelevant to consolidation under Code of Civil Procedure section 1281.3. In other words, there is no reason why an arbitrator cannot analyze the Mobilitas policy under Insurance Code section 11580.2 and separately evaluate the USFIC policy's contractual provisions. USFIC's citations to *Bouton v. USAA Casualty Ins. Co.* (2008) 43 Cal.4th 1190, which was not a consolidation case, are consequently unavailing.

Lastly, Petitioner's argument that consolidation promotes efficiency and reduces the risk of inconsistent rulings is persuasive. As Petitioner and Mobilitas recognize, Mobilitas is potentially entitled to an offset based on benefits under the USFIC policy. Without consolidation, there is therefore a strong possibility of inconsistent rulings, including, but not limited to, the following:

- Whether Petitioner was driving for Lyft when his injuries took place—a common issue of fact where diametrically opposed conclusions could defeat coverage in one case and confirm it in the other;
- Whether Petitioner was injured in the collision—a common issue of fact where diametrically opposed conclusions could defeat coverage in one case and confirm it in the other;
- The character or amount of damages—a contradiction of findings on one common issue of law and one common issue of fact (*e.g.*, one arbitrator could determine that certain special damages are the financial responsibility of the OAI carrier, while a separate arbitrator could independently find they fall solely under the UIM carrier's coverage, leaving Petitioner with incomplete recovery despite buying both policies);
- The amount of medical damages, if any (which USFIC acknowledges would be included in a determination of damages under the Mobilitas policy)[1]; and
- The interaction between the OAI payments and the UIM offset provisions.

For the above reasons, the Court finds that the facts of this case warrant consolidation of the arbitration proceedings for liability and damages purposes, pursuant to Code of Civil Procedure section 1281.3.

D. Arbitration Logistics – Which Arbitrator

Petitioner states that he and Mobilitas previously selected Sean Burke as the mediator. USFIC, however, has not participated in selecting an arbitrator. Because the parties have not agreed to an arbitrator, the arbitrator shall be selected in accordance with Code of Civil Procedure section 1281.6. That statute provides:

> If the arbitration agreement provides a method of appointing an arbitrator, that method shall be followed. If the arbitration agreement does not provide a method for appointing an arbitrator, the parties to the agreement who seek arbitration and against whom arbitration is sought may agree on a method of appointing an arbitrator and that method shall be followed. In the absence of an agreed method, or if the agreed method fails or for any reason cannot be followed, or when an arbitrator appointed fails to act and his or her successor has not been appointed,

[1] The Mobilitas UM/UIM policy "coverage is broad in scope and mirrors tort liability: the insured stands in the position of a plaintiff and is entitled to recover the full measure of compensatory damages, including both general damages (pain and suffering, emotional distress, loss of enjoyment of life) and special damages (***medical expenses***, lost wages, future economic loss), that a court or arbitrator determines the insured could recover from the at fault motorist." (See USFIC Opp. 5:15-21 [emphasis added].)

> the court, on petition of a party to the arbitration agreement, shall appoint the arbitrator.
>
> When a petition is made to the court to appoint a neutral arbitrator, the court shall nominate five persons from lists of persons supplied jointly by the parties to the arbitration or obtained from a governmental agency concerned with arbitration or private disinterested association concerned with arbitration. The parties to the agreement who seek arbitration and against whom arbitration is sought may within five days of receipt of notice of the nominees from the court jointly select the arbitrator whether or not the arbitrator is among the nominees. If the parties fail to select an arbitrator within the five-day period, the court shall appoint the arbitrator from the nominees.

In its final ruling, the Court will nominate five persons as potential arbitrators. If the parties fail to select an arbitrator within five days of notice of the nominees from the Court, the Court will appoint the arbitrator from the nominees.

E. Arbitration Logistics – Timing of Arbitration

Petitioner seeks an order requiring the arbitration to occur within 90-120 days of the Court's order. Mobilitas objects, arguing that "setting arbitration within 90 days is not feasible. Arbitration should be set at a mutually agreeable date and time." USFIC does not address this issue.

The Court notes that the timing of arbitration depends, in no small part, on the availability of the arbitrator (in addition to the availability of the parties and their respective counsel). For the foregoing reasons, the Court determines that 90 days may not be realistic. Instead, the Court orders arbitration to occur within 180 days of notice of its ruling.